

Judgment Sheet
IN THE LAHORE HIGH COURT
LAHORE
Judicial Department
C.R.No.24022 of 2020

Province of Punjab, etc. Versus M/s. Muhammad Arif and
Company.

JUDGMENT

Date of hearing: **20.12.2021**

Petitioners by: Barrister Hassan Khalid Ranjha,
A.A.G/Government Pleader.

Respondent by: Ch. Muhammad Akbar Gill, Riaz
Kareem Qureshi and Ch. Riaz
Hussain, Advocates.

MUZAMIL AKHTAR SHABIR, J: Through this Civil Revision filed under Section 115 of the Code of Civil Procedure, 1908 ('C.P.C.'), the petitioners have called in question judgment dated 24.12.2019 passed by learned Addl. District Judge, Lahore, whereby the said court allowed the appeal filed by the respondents and while setting aside the order dated 07.11.2019 passed by the Civil Judge, Lahore, the award dated 04.05.2017 announced by the Umpire was made rule of the court.

2. Although learned A.A.G has argued that the impugned judgment is not sustainable yet at the very outset, learned counsel for the respondent have raised preliminary objection that the instant Civil Revision is barred by limitation as initially the order dated 24.12.2019 was challenged on 12.03.2020 by filing Civil Revision, which on the said date was within time but the Revision was totally incomplete and it was returned on the same date

with direction to re-submit the same after removing objections within three days, however, the same was re-filed on 02.06.2020 i.e., beyond the period of three days provided by the office for filing the said revision, hence, respondents claim that the same became barred by time and is liable to be dismissed.

3. When confronted, the learned A.A.G has vehemently argued that once Civil Revision was filed within time and there-after returned by raising certain objections, even if the same was re-filed beyond the period provided by the office or period of limitation provided by law, the same could not be treated as barred by time and the Court was required to decide the same on merits instead of dismissing the same on technical grounds.

4. Heard. Record perused.

5. The Petitioners challenged judgment passed by the appellate court dated 24.12.2019 by filing titled Civil Revision on 12.03.2020, which was totally incomplete and the office raised objections at serial numbers 8, 9, 11, 17, 18 and 26 of the Objection sheet and on the basis of the same the file of the case was returned with observation '**incomplete case**' with direction '**to be re-submitted after removing the objection within 03 days**' and the same was received by the petitioners on the same date i.e. 12.03.2020, however, the same was re-filed on 02.06.2020 i.e., after delay of more than two and half months and not within three days as directed by the office and in the meanwhile the time of 90-days provided as limitation under section 115 C.P.C. for filing Civil Revision, even after giving benefit of time required for obtaining certified copies of impugned judgment and order i.e. 8 days

consumed between filing application to obtain certified copies dated 15.01.2020 and delivery on 22.01.2020, had expired.

6. The matter of limitation in similar circumstances came up for hearing in case reported as **PLD 2020 Supreme Court 736** (*ASAD ALI and 9 others versus The BANK OF PUNJAB and others*), wherein it has been laid down that where an appeal was initially filed within time but office returned the same by raising certain objections and giving specified timeframe to remove such objections, and re-file the same whereas the said objections were not removed within the timeframe allowed/provided by the office and in the meanwhile the limitation period for filing appeal had expired, the appeal would become barred by time.

7. The question of limitation relating to filing of Civil Revision before this Court came up for hearing in a matter reported as **PLD 2018 Lahore 697** (*KHALID MEER and others versus FAQEERULLAH MINHAJ and others*) with similar circumstances where the Civil Revision was filed within time and office raised objection that it was incomplete and returned the same on the same date for refilling after removing objection within 3 days but the same was re-filed without plausible reason after more than 60 days of its return and in the meanwhile the limitation for filing revision had expired, it was observed by this Court that the petitioners were required to re-file the Civil Revision within three days of its receipt and the Civil Revision re-filed after the said period without explaining any plausible reason, when limitation for filing revision had also expired, was barred by time. However, this Court in the said case observed that had the office retained the file with

it, the situation would have been different and in that case the Office would have been responsible for issuing notice to the petitioners, otherwise said time would not operate against the petitioners.

8. In the instant case, the Civil Revision was filed on 12.03.2020, when objections were raised and file was returned by the office on the same date directing the Petitioners to re-file the same within three days, which direction was not adhered to by the Petitioners, who re-filed the same on 02.06.2021, which in view of the principles laid down in the afore-referred judgments is clearly barred by time. It is not the case of the petitioners that they did not have the notice of the office objection or the revision petition had been retained by the office of this Court to allow concession of time by concluding that said time would not run against the Petitioners and in these circumstances the petitioners were required to file application for seeking condonation of delay by providing a plausible reason for filing the Revision Petition with delay in order to proceed further with the same. However, no such application has been filed by the petitioners.

9. Needless to mention that the petitioners were required to explain each and every day of delay with precision in view of the principles laid down in judgment reported as **PLD 2003 Supreme Court 628** (*Sheikh MUHAMMAD SALEEM Vs. FAIZ AHMAD*), wherein it is provided that a person seeking condonation of delay must explain delay of each and every day to the satisfaction of the Court and should also establish that delay had been caused due to reason beyond his control and mere involvement of valuable rights would not furnish a proper ground for condonation of delay

in a civil matter as door of justice was closed after the prescribed period of limitation had elapsed and no plea of injustice, hardship or ignorance could be of any avail unless the delay of each day was properly explained and accounted for.

10. In the present case, petitioners have failed to explain delay of each and every day in refilling revision petition after removing office objections especially when in the meanwhile limitation of 90-days for filing Civil Revision under Section 115 C.P.C had also expired, hence, no ground to entertain the Revision Petition is made out especially when no question of law or jurisdictional defect is floating on the surface of record for this Court to take up the matter in its *suo motu* jurisdiction. Consequently, this Civil Revision being barred by time is **dismissed**.

(Muzamil Akhtar Shabir)
Judge

Approved for reporting.

Judge

Zeeshan Khan